

sale of writs. The practice under Henry III. has been described by our highest authority :—" Apparently there were some writs which could be had for nothing ; for others a mark or a half-mark would be charged, while, at least during Henry's early years, there were others which were only to be had at high prices. We may find creditors promising the King a quarter or a third of the debts that they hope to recover. Some distinction seems to have been taken between necessities and luxuries. A royal writ was a necessary for one who was claiming freehold ; it was a luxury for the creditor exacting a debt, for the local courts were open to him and he could proceed there without writ. Elaborate glosses overlaid the King's promise that he would sell justice to none, for a line between the price of justice and those mere court fees, which are demanded even in our own day, is not easily drawn. That the poor should have their writs for nothing, was an accepted maxim." ¹

Probably the practice before and after 1215 showed few material differences. Some of the more glaring abuses were checked : that was all.² Parliament in subsequent reigns had frequently to petition against the sale of justice in alleged breach of Magna Carta.³ The King usually returned a politic answer, but never surrendered his right to exact large sums for writs of grace. Richard II., for example, replied : " Our lord the King does not intend to divest himself of so great an advantage, which has been continually in use in Chancery as well before as after the making of the said charter, in the time of all his noble progenitors who have been kings of England." ⁴

It is evident that Magna Carta did not put down the practice of charging heavy fees for writs. Yet this chapter,

¹ Pollock and Maitland, I. 174. Cf. *ibid.*, II. 204, and authorities cited.

² Madox, I. 455, says : " And this clause in the great Charters seems to have had its effect. For . . . the fines which were paid for writs and process of law were more moderate after the making of those great Charters than they used to be before."

³ Instances are collected by Sir T. D. Hardy in *Rot. de oblatis*, p. xxi. See also Stubbs, *Const. Hist.*, II. 636-7.

⁴ *Rot. Parl.*, III. 116, cited Stubbs, *Const. Hist.*, II. 637.